

# TERMS AND CONDITIONS OF USE

## Blue Cube (Malta) Limited

### Version No. 1. effective from December, 1 2025

Blue Cube (Malta) Limited is a private limited liability company organized and existing under the laws of Malta, bearing company registration number C112614, and registered office address at 171, Old Bakery Street, Valletta, Malta, VLT 1455 (hereinafter referred to in this document as “**we**”, “**us**”, “**our**”). We provide certain Services, as defined below, related to Crypto Assets.

Our activities are subject to:

- The Regulation (EU) 2023/1114 of the European Parliament and of the Council of 31 May 2023 on markets in crypto-assets (“MiCAR”)
- The regulatory technical standards, implementing technical standards, guidelines, recommendations and opinions issued pursuant to MiCA,
- The Markets in Crypto-Assets Act (Chapter 647, Laws of Malta),
- Markets in Crypto-Assets Rulebook issued by the MFSA;
- The Prevention of Money Laundering Act (Chapter 373, Laws of Malta);
- The Implementing Procedures of the Financial Analysis Intelligence Unit, and
- Other applicable laws, rules, regulations or guidelines, as issued from time to time.

and we hold a crypto asset service provider license No BCML8-25339 issued by the Malta Financial Services Authority (the “MFSA”). Our activities are supervised by the MFSA.

These Terms govern the relationship between us and you in using our Services. By using our Services, you agree to the rules, obligations, and rights established herein.

## 1. DEFINITIONS

- 1.1. The capitalized terms used in these Terms shall have the meanings assigned to them either in Schedule 1 “*Glossary of Terms*” or in the relevant sections of these Terms. Schedule 1 “*Glossary of Terms*” contains a comprehensive list of defined terms, including those referenced in any Schedules, annexes, or related agreements. In the event of a conflict or ambiguity, the definition provided in the section of the Terms or Schedule directly applicable to the subject matter shall prevail.
- 1.2. In interpreting these Terms:
  - 1.2.1. all clause, annex and paragraph headings in these Terms are solely for convenience and shall not affect their interpretation;
  - 1.2.2. unless the context clearly indicates otherwise, words denoting one gender include all genders, words denoting individuals or persons include entities and vice versa, words used in the single include the plural and vice versa, and the words “including”, “included”, “in particular” and of any similar expression shall be construed as being by way of illustration only and not as limiting the generality of any words preceding them;
  - 1.2.3. references to a person shall include references to that person’s legal representatives, successors and permitted assignees;
  - 1.2.4. references to a document or agreement (including a reference to this document) is to that document or agreement as amended, supplemented, varied or replaced;
  - 1.2.5. references to any statute, statutory, statutory provision, subordinate legislation under the relevant statute, or European Union (EU) directive or regulation shall include any statute, statutory, statutory provision, subordinate legislation, or EU directive or regulation which amends or replaces it or has amended or replaced it.

## **2. GENERAL INFORMATION AND CLIENT'S REPRESENTATIONS**

- 2.1. These Terms (incl. its Schedules) govern the contractual relations between us and you when using our Services.
- 2.2. We strongly encourage you to read these Terms carefully. By accepting them, you enter into a legally binding agreement with us, effective from the date of acceptance. This agreement will remain in effect indefinitely unless terminated as outlined in these Terms. If you have any questions or require clarification, please contact us before proceeding.
- 2.3. In addition to these Terms, relationships pertaining to the provision of Services shall also be governed by mandatory laws and other legal acts of the European Union and laws of Malta. Also, any additional provisions which regulate or facilitate the relationship between you and us that are not stated in these Terms, as well as any additional services or products that we may provide or make available to the you from time to time not covered by these Terms, may be subject to a separate agreement or annex executed between us and you.
- 2.4. Any marketing communication concerning our Services or any offered Crypto-Asset will be clearly identifiable as marketing, fair, clear, and not misleading, and consistent with the relevant MiCAR whitepaper disclosures.
- 2.5. Pre-contractual and contractual information will be provided to you in a durable medium via electronic communication. We ensure that pre-contractual information concerning Crypto-Assets, including associated rights, obligations, risks, and fees, is provided in a clear and comprehensible manner. We store these documents on the Website and you may also access these documents on your Account dashboard. These documents may be printed on paper and/or saved in the hard drive of your computer or to any other durable medium.
- 2.6. For the purposes of accepting these Terms by you the handwritten signature is being replaced by means of electronic access, such as providing an electronic signature, typing an identification number on a keyboard, electronically communicating a password, ticking an "accept" box or any other technical procedure implemented by us, and the use of such means by you will have the same binding force as the use of a handwritten signature. If there is anything in these Terms with which you do not agree, you should not accept these Terms. Any use of our Services serves as proof that you have read these Terms as well as agree to all the clauses of these Terms and undertake to adhere to them.
- 2.7. You are made aware that the risk of loss relating to Crypto-Assets can be substantial. The value of Crypto-Assets can go up or down thus there can be a substantial risk of losing value while buying, selling or otherwise dealing with Crypto-Assets. You should carefully consider whether dealing with Crypto-Assets in any way is suitable for you by considering your financial situation.
- 2.8. By applying for opening of Account and accepting these Terms, as well as any revised version thereof, you represent and warrant on an ongoing basis that:
  - 2.8.1. you are eligible to use the Services by complying with criteria listed in Section 3 below;
  - 2.8.2. you have all rights, powers and authority to enter into these Terms and to fully perform its obligations hereunder;
  - 2.8.3. you have read, understood, and agreed to these Terms;
  - 2.8.4. your use of Services does not violate any Applicable Law of any jurisdiction that applies to you;
  - 2.8.5. you do not perform, are not involved and have no intentions to use the Services for any illegal purposes or prohibited activities under Applicable Laws;
  - 2.8.6. you will not introduce any viruses or other malware and destructive components into the Blockchain.com System;
  - 2.8.7. you do not use / intend to use the Blockchain.com System for anything that is unlawful, malicious or that could disable, overburden, or impair the proper working of the Blockchain.com

System or may hurt our reputation or otherwise pose any threat to us;

- 2.8.8. you acknowledge and accept that you must complete, to our satisfaction, the due diligence procedures required for our KYC checks, as well as other AML/CTF, fraud, and background verification processes (e.g., identity verification). You agree to provide true, accurate, complete, and up-to-date information, documents, and other evidence as requested for these purposes. Additionally, you agree that we reserve the right to repeat these checks at any time during the course of our relationship (see Section 4 for more details);
- 2.8.9. any and all actions (transactions) performed by using your Account and related to the conclusion and implementation of the Crypto-Asset Transactions, submission of Orders, the use of our other Services and/or discharge of other provisions of the Terms shall be valid and causing the same legal effects as the actions (transactions) formalized by a paper document signed by you;
- 2.8.10. you have enough knowledge relating to Crypto-Assets to use the Services, and understand the nature, potential value, suitability, risks and appropriateness of the Services;
- 2.8.11. any Crypto-Asset or Fiat involved by you in any Transaction is owned by you and is derived from legitimate sources;
- 2.8.12. we have not advised, nor individually recommended, to you to use the Services, excluding any advertisement of the Services;
- 2.8.13. you are not subject to bankruptcy or insolvency or other similar procedures;
- 2.8.14. at all times you will comply with the Terms as well as Applicable Law; and
- 2.8.15. that all of the above is true and accurate on the day of acceptance of these Terms and shall remain true and accurate until these Terms are terminated.
- 2.9. We rely on the representations and warranties listed above when entering into these Terms and each time we provide the Services to you.
- 2.10. We reserve the right to terminate the contractual relation with you under these Terms and close the Account and the Wallet, once we discover or have the grounds to suspect that you are in breach of any of the representations and warranties listed under Clause 2.7 above. You shall reimburse any losses and damages that we incur in the result of your failure to provide us with true, accurate and complete representations and warranties.
- 2.11. We do not warrant that the functions of the Blockchain.com System will meet your requirements or that its operation will be uninterrupted or error-free. In this regard, you are expected to:
  - 2.11.1. promptly notify us of any improperly provided Services, unauthorized or improperly executed Transactions, loss, theft, unauthorized use, or illegal acquisition of your Security Credentials, as well as the loss of your electronic device used for accessing the Account;
  - 2.11.2. immediately inform us of any suspicions regarding non-compliance with these Terms and refrain from carrying out any Transactions until instructed otherwise by us;
  - 2.11.3. take all reasonable measures to prevent the unlawful disclosure, appropriation, or misuse of your data related to Transactions.
- 2.12. Certain services provided under these Terms may qualify as crypto-asset services under MiCAR and are subject to licensing and supervision by the MFSA. For the avoidance of doubt, self-custodial DeFi Wallet functionalities are not provided by Blue Cube (Malta) Limited, do not involve any custody or intermediation, and fall outside the MiCAR regulatory perimeter.

### **3. CUSTOMER ELIGIBILITY CRITERIA**

- 3.1. Without prejudice to other provisions of these Terms regarding cases where we may suspend Services

or terminate this agreement. We will accept you as a customer only if you meet all of the following criteria:

- 3.1.1. you are a natural person;
- 3.1.2. you are of legal age to contract in your jurisdiction and have the capacity to enter into and be bound by these Terms and any other document related thereto according to the laws applicable to you;
- 3.1.3. you are residing in a country in which we are permitted to provide Services according to the Applicable Laws of that country;
- 3.1.4. you have successfully undergone and completed our customer due diligence procedures, including KYC as part of your onboarding process, including without limitation, provided all reasonably requested information and documents, successfully completed identity verification process and fulfilled other related necessary steps (please refer to Section 4);
- 3.1.5. you are not subject to international sanctions;
- 3.1.6. your money laundering and / or terrorist financing (ML/TF) risk is within our risk appetite. During your onboarding (and periodically thereafter) we will calculate your ML/TF risk level based on our internal methodology and various risk factors (including but not limited to, nationality, residency, occupation, and other relevant factors). If we determine that your ML/TF risk level, as determined by this assessment, exceeds our defined risk appetite (the maximum level of risk deemed acceptable), we will decline to provide Services to you;
- 3.1.7. you have completed the necessary technical steps needed to use our Services, including entering a valid email address, choosing a password, providing us the information necessary for us to perform our customer due diligence procedures, consented to these Terms, our Privacy Policy and cookies policy.

#### **4. ONBOARDING, KYC AND AML/CTF REQUIREMENTS**

- 4.1. We will accept you and provide the Services to you only if your identity has been duly established and verified in accordance with the procedures set out in these Terms, the Applicable Law and our internal procedures.
- 4.2. We have the right to request you to provide any information (including, but not limited to, information about your country of residence for tax purposes, your address in that country, your taxpayer identification number, etc.) and any other documents which, at our sole discretion, we deem necessary to establish and verify your identity and/or to assess your eligibility for us and/or the Services. We shall be entitled to take other lawful measures to establish your identity.
- 4.3. We have the right to require you to provide documents and information confirming the source of your funds and other assets, the purpose and intended nature of your business relationship with us, the nature of your occupation, or any other documents and information, insofar as necessary for our compliance with Applicable Law and AML/CTF requirements.
- 4.4. We have the right to re-identify you, update the information collected during the identification process, or take additional steps to verify your identity.
- 4.5. Documents must be submitted to us in the form we require. For example, we may request original documents, copies certified by a notary public, copies certified by an Apostille or legalised, etc.
- 4.6. Documents submitted to us must be prepared in English, or another language specified by us. If your documents are drawn up in a language not acceptable to us, we have the right to require them to be translated into English or another specified language, with the translation signed by the translator and the authenticity of the translator's signature certified by a notary public. If we accept your documents in a different language, we may arrange for their translation into English if necessary.
- 4.7. You are responsible for all costs related to the preparation, delivery, approval, and translation of your

documents submitted to us.

- 4.8. To protect our or your interests, we have the right to refuse documents that can be easily falsified or that do not contain sufficient data to establish your identity.
- 4.9. We have the right to retain and store notarised copies of your documents or, in cases we specify, the original documents you submit. If we do not retain the original documents or notarised copies, we have the right to make and keep copies of your submitted documents.
- 4.10. We have the right to verify the information you provide using public sources, reliable and independent non-public sources, and other lawful means.
- 4.11. If you fail to comply with the obligations set out in this section, or if we are not satisfied with the result of your identification or re-identification, or if the result does not comply with the requirements of Applicable Law, or if you fail to provide, evade, or refuse to provide us with any requested documents or information, or if you provide incorrect or inadequate information, we are entitled to not accept you as a customer, to terminate the Terms if already in place, or to suspend the provision of any and all Services. In such cases, we are entitled to claim compensation from you for all direct and indirect losses incurred as a result of your improper performance of obligations.
- 4.12. During the ongoing contractual relationship, if there are any changes in the data you provided, the circumstances evidenced by the provided documents, or other material changes relevant to these Terms (e.g., changes in your name, surname, citizenship, residence address, bankruptcy or insolvency proceedings), you commit to provide updated information and supporting documents as soon as possible, but no later than within five (5) Business Days after the changes have occurred, regardless of whether such information or documents have been provided to public registers.
- 4.13. You must periodically update your information and provide all supplemental, supporting documents, data, and information related to KYC processes to comply with Applicable Law. We will notify you and send a request, specifying a time period for you to provide the required documents, data, and information.
- 4.14. At the time of your identification or re-identification and/or updating of your data, we may restrict the provision of Services to the extent we deem necessary.
- 4.15. We will monitor your transactions, and in the case of a suspicious and/or unusual operation or transaction, we have the right to suspend it, including, but not limited to, suspending a Transaction, for a certain period. In such cases, we will not be liable to you for any default on contractual obligations and/or for any damages or losses you may sustain.
- 4.16. We have a general duty to report any suspicious activity identified during our business relationship with you to the relevant authorities, as well as to fulfil other reporting obligations deriving from Applicable Law. We will not be liable to you for executing such duties.
- 4.17. We are entitled to terminate our business relationship with you at any time if we determine that continuing the relationship exposes us to a ML/TF risk that we no longer deem acceptable.

## **5. ACCESS TO SERVICES WALLET**

- 5.1. You can access and use our Services through an Account created for you upon acceptance of these Terms and completion of the onboarding process with us.
- 5.2. Login to the Account requires usage of the Security Credentials using methods provided and/or approved by us. The Blockchain.com System software will also generate cryptographic keys that you shall use in order to send and receive any supported Crypto-Assets via the relevant Crypto-Assets network.
- 5.3. The email address you specify for identification and/or login to your Account purposes must remain valid throughout the entire period of your Account validity. If needed (upon your request), and subject to your satisfactory compliance with our request for documents and information, we can manually change the email address you use for login and other purposes.

- 5.4. We will also open a Wallet, accessible through your Account, for you to securely store your Crypto-Assets and Fiat deposited with us and to initiate Transactions involving these assets.
- 5.5. The Wallet is only capable of supporting certain Crypto-Assets and Fiat currencies, as designated by us and subject to change at any time. We will strive to give you notice of any such changes; however, you are encouraged to regularly check the Website for updates on supported Crypto-Assets and Fiat currencies. Do not attempt to use the Wallet for Crypto-Assets and Fiat currencies that are not supported.
- 5.6. The Crypto-Assets available on our platform may include Utility Tokens, Asset-Referenced Tokens (ARTs), and E-Money Tokens (EMTs), each as defined in MiCAR. We will disclose the classification of each token and applicable legal implications prior to offering, listing, or enabling trading in such tokens.
- 5.7. The types of Transactions you can conduct using the Crypto-Assets or Fiat in your Wallet, as well as conditions for provision of other Services are detailed in the respective sections and Schedules of these Terms.
- 5.8. We shall not be liable for any indirect, incidental, or consequential losses, including loss of profit, data, or business opportunity, that may arise from your use of the Website or the Services, except where such losses result directly from our wilful misconduct or gross negligence. We shall not be liable for any failures, delays, or interruptions in the operation of the Website or the Services resulting from circumstances beyond our reasonable control, including system errors, internet or network failures, cyber-attacks, or force majeure events.

## **6. PROHIBITED ACTIVITIES**

- 6.1. It is strictly prohibited to use any of the Services for any of the following:
  - 6.1.1. to conduct or engage in any illegal or unlawful activity;
  - 6.1.2. to hide or disguise the proceeds of any illegal or unlawful activity;
  - 6.1.3. to engage in any fraudulent or malicious activity;
  - 6.1.4. to control or use an Account (incl. associated Wallet) that does not belong to you;
  - 6.1.5. to allow anyone who is not a duly authorized person accepted by us to have access to your Account and/ or use Services in your name;
  - 6.1.6. to disable, disassemble, reverse-engineer or decompile the Blockchain.com System;
  - 6.1.7. to act in a way that imposes an unreasonable or disproportionately large load on our infrastructure; to detrimentally interfere with, intercept, or expropriate any system, data, or information; to transmit or upload any material to our Blockchain.com System or Website that contains viruses, Trojan horses, worms, or any other harmful or deleterious programs; to attempt to gain unauthorized access to our Blockchain.com System, Website, or the Accounts of other users, computer systems, or networks connected to our Blockchain.com System or Website, through password mining or any other means; or to use another party's Account/Wallet or other information to access or use our Blockchain.com System or Website;
  - 6.1.8. to infringe on our Intellectual Property Rights;
  - 6.1.9. to conduct or engage in activity in a way that we reasonably believe might harm our ability to provide the Services;
  - 6.1.10. to disclose your Security Credentials to any third parties;
  - 6.1.11. to engage in any other use or activity that breaches these Terms or is not in conformity with sustainable practices, ensuring human rights, transparency, gender equality, moral and ethical standards, or any other activity we deem unacceptable.

- 6.2. We reserve the right, without any prior notice or explanation, to refuse you access to our Services or to terminate our relationship with you if we reasonably suspect that your activities violate any of the prohibitions specified in this Section.

## **7. RESTRICTIONS ON SERVICES**

### *Blocking of the Account or Restriction of the Services*

- 7.1. Your Account may be blocked at your request, as well as upon your notification or when we otherwise become aware that the Security Credentials have been stolen, lost, or their contents have otherwise become known or may have become known to third parties.
- 7.2. We have the right to demand that the request submitted by you orally to block your Account be subsequently approved in writing or in another manner acceptable to us. If we have reasonable doubts that the request is not submitted by you, we have the right to refuse to apply blocking. In such cases, we shall not be liable for any losses that may result from the failure to comply with the said request.
- 7.3. We shall have the right to block your Account or restrict the provision of Services (any part thereof) without your instruction if:
- 7.3.1. you engage or we have grounds to suspect that you may engage in prohibited activities as listed in Clause 6.1);
  - 7.3.2. we have reasonable suspicions about the security of your Crypto-Assets and/or Fiat, Wallet or the Security Credentials, or about unauthorised or fraudulent use of the Crypto-Assets and/or Fiat in your Wallet or unauthorised Transactions;
  - 7.3.3. the Security Credentials have been incorrectly used for several times;
  - 7.3.4. your Account/ Wallet is seized or your Crypto-Assets or Fiat entrusted to us are subject to a restriction on the disposition of or any other restriction on the use of your Crypto-Assets or Fiat;
  - 7.3.5. if the validity term of your personal identification document expires. Suspension term will continue until updated documents are provided;
  - 7.3.6. we are provided with contradictory information about the persons entitled to dispose of your Crypto-Assets or Fiat, Wallet or manage your Account;
  - 7.3.7. we are provided with evidence-based information about your death;
  - 7.3.8. your bankruptcy is declared or initiated, or the risk of insolvency on your side arises;
  - 7.3.9. if you breach or we have grounds to suspect that you may be in breach of the provisions of these Terms, or any other conditions applicable to the Services;
  - 7.3.10. during operational maintenance, update, upgrade or errors of the Blockchain.com System, as well as in case of illegal intervention, viruses or other malware suffered by the Blockchain.com System;
  - 7.3.11. in case of abnormal and unforeseeable circumstances beyond our control;
  - 7.3.12. if we are required to do so by Applicable Law, including under the requirement of the competent authorities.
- 7.4. We will make reasonable efforts to inform you of any such restriction in advance, or if this is not practicable, immediately afterwards and give its reasons for such restriction unless informing you would compromise security measures or is otherwise prohibited by Applicable Law.
- 7.5. We will lift the restrictions as soon as the circumstances that led to their application no longer exist. If the restriction was applied at your request, we will lift it upon receiving your written request to do so, unless otherwise agreed.

- 7.6. We shall not be liable for any losses incurred by you or third parties as a result of restriction of Services or rejection of any Order/ Transaction.

*Suspension of a Transaction/ Order*

- 7.7. We may suspend, restrict or terminate the customers access to any or all of the Services and/or deactivate or cancel and Account, without reason by giving the customer five (5) days' notice. The customer acknowledges Our decision to take certain actions, including limited access to, suspending or closing an Account, may be based on confidential criteria that are essential to our risk management and security protocols. The customer agrees that we are under no obligation to disclose the details of its risk management and security procedures to the customer.
- 7.8. In order to properly comply with the requirements of the Applicable Law governing the AML/CTF or the instructions of the relevant competent state authorities, we shall have the right to suspend a suspicious or unusual Transaction or Order for a period of time specified in the Applicable Law. In this case, we shall not be liable to you for any breach of contractual obligations or any damage or loss suffered by you.

**8. FEES AND CHARGES. TAXES**

- 8.1. We will charge Fees applicable to you as per the Fees Schedule provided on our Website [here](#), which applies at the time each Transaction is carried out. You agree to pay the Fees in the manner set out in these Terms.
- 8.2. The Fees referred to in Clause 8.1 are subject to change at any time at our sole discretion.
- 8.3. If you owe us any Fees or other amounts, we will deduct the respective Fees/amounts from the Crypto-Assets/Fiat entrusted to us without requiring separate instructions from you. By using our Services, you authorize us to deduct these Fees/amounts on your behalf. We also reserve the right to set off any amounts payable to you against amounts you owe us.
- 8.4. You must ensure that the required Fees/amounts due from you are available to us on the due date. If you do not have enough Crypto-Assets/Fiat to cover the Fees or other amounts owed, we reserve the right to suspend providing our Services to you until you pay the outstanding fees/amounts. In such a case we will issue an invoice for the amount owed to us which shall be paid by you within 3 (three) Business Days in accordance with the procedures set forth in the invoice.
- 8.5. We reserve the right to apply default interest of 0,05% on any overdue amounts for each day of the breach. All fees, costs and charges related to payment of the invoices shall be borne by you.
- 8.6. You understand that we may take debt collection or enforcement measures, including involving a debt collection agency or initiating court proceedings, to claim any debts you owe us. You will be responsible for all costs incurred during such measures.
- 8.7. We are not obligated to determine whether taxes, duties, or other relevant charges apply to you, nor are we responsible for assessing, collecting, reporting, remitting, or paying any such taxes, duties, or charges arising from your purchase or sale of Crypto-Assets (if any). It is your responsibility to pay any taxes applicable to your use of our Services. If we are required under Applicable Law, or choose voluntarily, to report information related to your tax obligations to any competent authorities, you agree to provide us with any requested documents, data, or information.

**9. SECURITY AND CORRECTIVE MEASURES**

- 9.1. You undertake to always use the Service in accordance with these Terms and other documents regulating the provision of Services. You are urged to check the information about your Transactions at least once per month.
- 9.2. To authorise a Transaction, you may be required to use Security Credentials or cryptographic keys. Any Transactions carried out remotely using Security Credentials or cryptographic keys are deemed to be initiated by you.



- 9.3. We may introduce additional security measures for the additional Services or products. We will notify you of any such security measures in advance.
- 9.4. You are solely responsible for safely keeping Security Credentials and cryptographic keys.
- 9.5. You agree to use our software, programs and applications available to you, in accordance with our instructions and recommendations. You may not, in any form or manner, make them available to third parties or copy, decompile, adapt or alter them.
- 9.6. You shall inform us about any requests received by you to enter or otherwise disclose the Security Credentials or cryptographic keys. If at any time you become aware or suspect that your Security Credentials, cryptographic keys have been lost, stolen, misappropriated, used without authorisation or otherwise compromised, you shall notify us without undue delay and, if there is such possibility, immediately change the Security Credentials. You understand that any undue delay in notifying us may result in you being liable for any losses or damages arising from the above lost, theft, misappropriation, or unauthorised use.
- 9.7. It is your responsibility to ensure that any computer or other system, software, equipment or device therefrom you access or use the Wallet is protected and free from any viruses or other malware and destructive components. You shall also not leave them unattended, in public places or otherwise easily accessible to third persons. It is recommended to update software, applications, anti-virus programs, browsers and other programs in time.
- 9.8. We also recommend you to:
- 9.8.1. protect devices with passwords, pin codes or other safety measures;
- 9.8.2. evaluate received emails with cautiousness, even if we are indicated as the sender. We will never request you to download attachments or install software. Attachments to fraud e-mails may contain viruses which can harm devices or pose a risk to the safety of your Account;
- 9.8.3. not to click on unknown links, open unknown documents, install software or application from unknown, unreliable sources or visit unsafe websites.
- 9.9. If you notice any suspicious activity on your Account, unauthorised Transactions and/or think that third persons may have logged in to your Account, you shall:
- 9.9.1. immediately inform us thereof and request to block your Account;
- 9.9.2. provide us with all available information about any unauthorised access into your Account, as well as about any illegal actions of third parties performed in the result of such unauthorised access. You undertake to assist us in investigating of the unauthorised or incorrectly executed Transactions;
- 9.9.3. in order to continue to use the Account and our Services, you shall change the Security Credentials, use other instruments to access your Account and delete unsafe instruments from the Blockchain.com System, as well as follow other instructions from us.
- 9.10. If we come into knowledge of any unauthorized Transactions, unauthorized access to your Account, fraud, or other security threats, we will put best efforts to block the affected activities (if possible) and inform you about the nature of the suspected issue, the security measures applied, and provide specific instructions for securing your Account. The notification will be sent to the email address registered with your Account. To ensure the authenticity of the notification and to protect against potential phishing attempts, we advise you not to follow any links provided in emails. Please log in to your Account directly via the Website to review and manage the notification securely.
- 9.11. To the extent permitted by the Applicable Laws and regulations, we shall not be liable for any losses or damages you incur due to your failure to comply with the above requirements.

## **10. CHANGES TO THESE TERMS**

- 10.1. Without prejudice to other provisions of these Terms, we reserve the right to unilaterally change these Terms at any time. A revised edition of these Terms will be provided to you, or you will be informed where a revised edition of Terms is available (e.g., our Website, your Account dashboard, etc.). We will notify you about the changes to the Terms by the means indicated in Section 11.
- 10.2. Changes to these Terms are subject to at least 60 days' notice before their proposed date of application. If the changes concern minor, technical corrections, amendments that do not have an adverse effect on your rights and legitimate interests, such changes will be subject to a shorter notice period of at least 10 Business Days before the proposed date of application. If you do not notify us that changes to these Terms are not acceptable to you before the proposed date of their entry in force, you will be deemed to have accepted such changes and be bound by the updated or amended Terms.
- 10.3. If you disagree with the proposed changes to these Terms, you have the right to terminate these Terms free of charge and with effect at any time before the proposed date of entry into force. Your notice rejecting these changes will be treated as a notice of termination of these Terms. Upon termination, your Account and Wallet will be closed in accordance with these Terms.
- 10.4. We have the right to change these Terms for important reasons (including changes in Applicable Law) without following the notification process mentioned above. In such cases, we will notify you immediately by publishing the information on the Website, your Account dashboard, and/or via email. If this happens, you have the right to terminate these Terms by notifying us immediately, but no later than 3 (three) days after the notification.
- 10.5. If you do not exercise your right to terminate these Terms according to Clauses 10.3 and 10.4, you will be deemed to have accepted the changes and will be bound by the updated or amended Terms. You will not be entitled to submit objections or claims regarding the content of such changes after that.
- 10.6. Amendments to these Terms will not have retrospective effect and will not affect any rights or obligations that have arisen between you and us before the amendments came into effect.
- 10.7. You are not entitled to unilaterally change, amend, or alter any provisions of these Terms.

## **11. COMMUNICATION**

- 11.1. We will send you notifications, statements, reports, and any other communications related to our Services by posting them on your Account dashboard and/or by email to your verified email address that you provided during registration with our Blockchain.com System.
- 11.2. You must inform us immediately of any changes to your contact details. If requested, you will need to provide the relevant documents supporting the change. If you fail to meet this obligation, any notifications sent using the most recent contact details you provided to us will be considered duly sent, and any obligations based on those details will be considered as properly fulfilled by us.
- 11.3. If you have any doubts about whether a communication was sent by us, you should contact us immediately.
- 11.4. You can always contact us via contact details as provided in Clause 1.36 of Schedule 1 "*Glossary of Terms*".
- 11.5. Notifications, statements, reports, and other communications will be considered transmitted to you when we post or send them (as specified in Clause 11.1), and will be deemed received by you on the same Business Day they were sent (or on the next Business Day if sent on a non-Business Day).
- 11.6. You are required to regularly check your Account, Website, and your verified email address to stay informed about any notifications and other communications we send to you. You agree that failure to do so may result in missed notifications that could affect your rights and obligations under these Terms. We will not be liable for any losses or damages resulting from your failure to comply with these requirements. We are also not responsible for any errors, inaccuracies, technical defects, or damage caused by incorrect or outdated contact details you have provided and their subsequent use by us.

- 11.7. All communications sent via telecommunication or electronic means (such as the Internet) will be in English and will be considered written communications, unless otherwise agreed with you.

## **12. UNAUTHORISED OR IMPROPERLY EXECUTED TRANSACTIONS**

- 12.1. You must notify us promptly (at the latest by the next Business Day) after you become aware of any unauthorized or improperly executed Transactions or any other errors, inconsistencies, or inaccuracies in your Statement of Positions or Transaction information available on your Account.
- 12.2. Without prejudice to the requirement in Clause 12.1, we will only be liable for your direct losses arising from unauthorized or incorrectly executed Transactions (and only to the extent that such unauthorized or incorrectly executed Transactions were solely due to our error) only if you notify us as soon as you become aware of the Transaction and no later than within 14 days after the Transaction execution date, except where these Terms indicate otherwise.
- 12.3. If you fail to notify us of unauthorized or improperly executed Transactions within the time limits set out in Clauses 12.1 and 12.2, you will be deemed to have unconditionally approved the executed Transactions.
- 12.4. If you deny authorizing an executed Transaction or claim that the Transaction was not correctly executed, the burden is on you to prove that the Transaction was not authorized or was executed incorrectly.
- 12.5. You bear all losses resulting from unauthorized Transactions if these losses are incurred due to the use of a lost, stolen or misappropriated device or Security Credentials, cryptographic keys or the illegal acquisition thereof. You also bear losses if they arise from your dishonest actions or gross negligence, or if you intentionally fail to fulfil one or more of your obligations arising from these Terms.
- 12.6. In the event of an improperly executed Transaction, we may be liable only if the fault lies with us. We are not liable for errors made by third parties.

## **13. LIABILITY**

- 13.1. Without prejudice to other provisions of these Terms that exclude or limit our liability, we will not be liable for any damages that occur due to:
- 13.1.1. circumstances beyond our control, including but not limited to, the events of force majeure (any of the following events, which cannot be prevented or overcome by reasonable means, including but not limited to hacking attacks or hardware breakdowns, war, civil unrest, terrorist activity, sabotage or riots, the entry into force of regulations of state and government and other actions of government agencies and organizations, moratoriums, epidemics, blockades, embargoes, earthquakes, floods, fires or other disasters, acts of God, strikes, lockouts or similar labour disturbance) circumstances which are proven according to the Applicable Law;
- 13.1.2. failures by third parties not under our control, including the malfunction of blockchain networks, forks, unknown vulnerabilities in or unanticipated changes to the network protocol. We have no control over any Crypto-Asset or payment network and shall not be liable or responsible whatsoever for any harm occurring as a result of the inability to reverse a Transaction, and any losses in connection therewith due to erroneous or fraudulent actions or other potential adverse events or adverse consequences you may experience;
- 13.1.3. unauthorized access to your Account, forgotten passwords, security of passwords, Security Credentials and cryptographic keys, or technical faults resulting in a loss of ability to access your Account;
- 13.1.4. any errors in instructions you give us for Transactions, including without limitation, any errors you make in Transfer Orders (e.g. incorrect recipient's wallet address);
- 13.1.5. any computer virus, spyware, scareware, Trojan horse, worms, or other malware, or cyber, phishing, or spoofing attack that may affect your computer or other device where you access and use your Account/Wallet or our Services;

- 13.1.6. the volatility and unpredictability of the price of Crypto-Assets relative to Fiat currency or other Crypto-Assets that may result in significant losses over a short period of time. In addition, price and liquidity are subject to significant fluctuations that may be unpredictable. The price (which can go up or down and even drop to zero) and liquidity of Crypto-Assets have been subject to large fluctuations in the past and may be subject to large fluctuations in the future;
- 13.1.7. technical faults of the Crypto-Asset system, changes in the operating rules of an underlying Crypto-Asset network, incorrectly constructed Transactions, or mistyped wallet addresses;
- 13.1.8. your inability or difficulty in liquidating a position in Crypto-Assets. The market may not have sufficient demand to meet your request to execute such a transaction. Placing contingent orders, such as Limit Order, does not guarantee your potential loss will be limited to an intended amount, as market conditions may make it difficult to execute such orders. You may suffer losses due to Orders executing at lower or higher values than anticipated or requested. We shall not be liable or responsible whatsoever for any such price differences or other potential adverse events or adverse consequences you may experience;
- 13.1.9. Blockchain.com System malfunctions or failures, any delays, faults, mistakes, or inaccuracies of any kind in our Services;
- 13.1.10. any suspension of our Services as permitted under these Terms;
- 13.1.11. your obligation to assess and pay any taxes, duties, and other relevant charges that may arise from your activities using your Account or our Services;
- 13.1.12. your failure to comply with Applicable Laws and these Terms;
- 13.1.13. our implementation of Applicable Law, including, without limitation, our AML/CTF requirements that we impose on you.
- 13.2. To the extent permitted by Applicable Law, our liability under these Terms will always be limited to the total amount of Fees you paid while using our Services during the 3 (three) months before the day the damages arise. To the extent permitted by Applicable Law, we will only be liable for our wilful misconduct. Limitation in this Clause does not apply to our liability in case of unauthorised Transactions.
- 13.3. To the maximum extent permitted by the Applicable Law, we are not liable for indirect, incidental, punitive, or consequential damages arising out of or related to our Services. This includes, but is not limited to, loss of profits, loss of business opportunities, or loss of data.
- 13.4. In the event of suspected losses or discrepancies, we will promptly notify you and investigate the matter and take necessary actions to mitigate further risk. We will also work closely with relevant authorities to address any security incidents and ensure the recovery of lost Crypto-Assets, where possible.
- 13.5. You are required to report any unauthorized Transactions or discrepancies in accordance with the requirements of these Terms. Liability disputes will be resolved in line with the complaint handling and dispute resolution procedures outlined in Section 16 of the Terms.
- 13.6. We do not provide any financial, investment, or legal advice in connection with our Services. While we may provide information on the price, range, volatility, or features of Crypto-Assets, and events that may affect their price, this should not be considered as investment or financial advice. Any decisions you make related to Crypto-Assets are solely your responsibility, and we will not be liable for any loss you may incur as a result.

#### **14. TERMINATION OF THE TERMS. CLOSURE OF THE ACCOUNT**

- 14.1. We may terminate these Terms unilaterally at any time and for any reason by giving you a 1 (one) month prior notice.
- 14.2. We have the right to suspend or restrict the provision of Services and/or suspend the fulfilment of executed Transactions and/or refuse executed Transactions and/or refuse to complete, block, or

reverse a Transaction you initiated, or terminate these Terms unilaterally (without applying to court) if required by Applicable Law and/or by any competent authority with jurisdiction over our activities. The relevant measure will be applied within the period established under such Applicable Law or by the relevant competent authority. If no period is specified by Applicable Law or the relevant authority, we will determine the relevant period at our discretion.

14.3. We have the right to terminate these Terms unilaterally (without applying to court) and immediately for any of the following material reasons:

14.3.1. if you fail to comply with our requests to complete KYC procedures carried out and / or KYC procedures carried out under these T&C are not completed to our satisfaction;

14.3.2. if your risk changes and can no longer be assessed as acceptable to us, or if you fail to provide us with information or documents requested in the course of our relationship;

14.3.3. we are not able to check the accuracy of your information provided in the course of the KYC and AML/CTF procedures carried out;

14.3.4. you breach or we have grounds to suspect that you may be in breach of any of the representations and warranties set out in Clause 2.7 or provided us with untrue, inaccurate or incomplete information with respect to such representations and warranties;

14.3.5. you breach or we have grounds to suspect that you may be in breach of the prohibitions set out in the list of prohibited activities (as established in Clause 6.1);

14.3.6. you breach or we have grounds to suspect that you may use the Services for illegal, fraudulent and/or unfair activities or may be in breach of any laws or regulations applicable to your use of the Account, or the Services;

14.3.7. if you fail to notify us about changes in the information provided to us and/or about the circumstances which have or are likely to have a negative impact on the due discharge of the your obligations to us, and/or of any circumstances that are material for the performance of these Terms and/or, upon our request, you fail to submit the documents supporting such information or circumstances;

14.3.8. if you are subject to bankruptcy, insolvency, or similar proceedings, or fail to provide data regarding your financial condition when required by us to assess risk;

14.3.9. if you have defaulted on obligations under these Terms or any agreements with us or no longer meet the eligibility requirements laid down in Section 3 of these Terms;

14.3.10. we have concerns about the security of the Account (e.g. where the your Account is used by third parties without legal grounds, or the Account login details have been incorrectly used for several times within a short time span), or suspect that you use Services in a fraudulent or unlawful manner is likely to harm operation of the Blockchain.com System, our or third parties' justified interests, material rights or business reputation;

14.3.11. your Account/Wallet is subject to any pending litigation, investigation and/or we perceive a risk of regulatory non-compliance associated with the Account/Wallet;

14.3.12. other circumstances not mentioned above, including, but not limited to, failure to fulfil or improper fulfilment of any obligations specified in the Terms and/or inappropriate, abusive behaviour towards us may also be considered as material reasons, if they indicate that further provision of Services to you would infringe our, other clients' or the public's legitimate interests.

14.4. You may terminate these Terms at any point immediately (without prior notice), unless otherwise provided within a separate agreement between us. Before terminating these Terms and closing the Account, you shall withdraw your Crypto-Assets to external wallets and Fiat to your payment account. You may also terminate these Terms free of charge if we amend the Terms and you do not agree to such amendment in the manner set out in Clauses 10.3 and 10.4.

- 14.5. Upon the termination of these Terms for whatever reason:
- 14.5.1. all rights granted herein shall terminate immediately;
  - 14.5.2. you shall not be released from the obligation to pay full amount of Fees and any other amounts owed to us;
  - 14.5.3. transactions initiated under the Terms before their termination shall be completed in accordance with the provisions of the Terms applicable before their termination, unless otherwise agreed by us or otherwise required in accordance with Applicable Law and/or instruction of the competent authority;
  - 14.5.4. both you and we shall promptly return to each other, or destroy and certify the destruction of all confidential information to each other, if any (unless retention of such information is required by Applicable Law or foreseen in these Terms or related documents);
  - 14.5.5. we and you shall remit in full all payments due to each other according to these Terms accruing prior to the date of termination, and following such final payment, neither we nor you will be entitled to receive any payment from each other;
  - 14.5.6. any provision of these Terms that by its very nature or context is intended to survive any termination, cancellation or expiration hereof (e.g. liability, indemnification and other provisions), shall so survive;
  - 14.5.7. the Account/Wallet shall be closed and we will send any of your Crypto-Assets and Fiat remaining in the Wallet to your external wallet (for Crypto-Assets) and to your payment account (for Fiat), provided that you indicate specific details that allow us to process such return upon termination;
  - 14.5.8. subject to the Clauses above, all other performance obligations of you and we under these Terms shall cease.
- 14.6. In case of termination of these Terms and closure of the Account, and in case you do not owe any amounts to us, we will transfer: (i) the Crypto-Assets belonging to you to your other Crypto-Assets wallet as indicated by you; (ii) the Fiat belonging to you to your payment account as indicated by you. You are responsible for providing us with specific payment account and/or external wallet details for making such transfers. Unless you provide us with this information, we will not be able to return your Crypto-Assets and Fiat to you. You acknowledge that we might charge Fees for keeping of Crypto-Assets and/or Fiat belonging to you or for the transfer of your Crypto-Assets and/or Fiat to your external wallet or payment account and will deduct applied Fees before disbursement of the Crypto-Assets and/or Fiat to you. You undertake to comply with all the requests to complete the respective due diligence procedures carried out to mitigate the risk of fraud or other illegal activities and to comply with the AML/CTF requirements in order for us to properly settle with you.

## **15. DEATH OF WALLET HOLDER**

- 15.1. For security reasons, if we receive legal documentation confirming your death or other information leading us to believe you have died, we will freeze your Account and during this time, no transactions may be completed until: (i) your designated fiduciary has opened a new Account on the Blockchain.com System, as further described below, and the entirety of your Account has been transferred to such new account, or (ii) we have received proof in a form satisfactory to us that you have not died. If we have reason to believe you may have died but we do not have proof of your death in a form satisfactory to us, you authorize us to make inquiries, whether directly or through third parties, that we consider necessary to ascertain whether you have died.
- 15.2. Upon receipt by us of proof satisfactory to us that you have died, the fiduciary you have designated in a valid will or similar testamentary document will be required to open a new Account on the Blockchain.com System. If you have not designated a fiduciary, then we reserve the right to (i) treat as your fiduciary any person entitled to inherit your assets, as determined by us based on Applicable Law and upon receipt and review of the documentation we, in our sole and absolute discretion, deem necessary or appropriate, including (but not limited to) a valid will or similar testamentary document, or

(ii) require an order designating a fiduciary from a court having competent jurisdiction over your estate. In the event we determine, in our sole and absolute discretion, that there is uncertainty regarding the validity of the fiduciary designation, we reserve the right to require an order resolving such issue from a court of competent jurisdiction before taking any action relating to your Account.

## **16. COMPLAINTS AND DISPUTES**

- 16.1. If you have any complaints, feedback, or questions, please contact our Customer Service at [support@blockchain.com](mailto:support@blockchain.com). When you contact us, please provide your name, email address, and any other information we may need, as well as the matters on which you have feedback, questions, or complaints. Details of our Complaints Management Policy are set out on our website.

## **17. SERVICE DISRUPTIONS AND SYSTEM IMPROVEMENT WORKS**

- 17.1. We will not be liable for any disruption of the Services due to (including, but not limited to) failures of the hardware, software or other infrastructure used by us, disruptions in the internet connectivity, or other technical failures. Our Services and the systems used to provide the Services shall be provided to you on an "as is" basis and we shall make no warranties or representations as to the operation and quality of the Services, unless otherwise agreed with you.
- 17.2. We shall have the right to improve our systems and to remedy any deficiencies observed in our systems, even if this may cause or result in short-term disruptions in the provision of Services to you. We intend to continuously improve our systems and address its weaknesses.
- 17.3. In exceptional circumstances and on duly substantiated grounds, we shall have the right to carry out remedial work immediately, at any time of the day or night, in order to avoid possible losses to us or you. In the case referred to in this Clause, the remedial work shall be carried out within the shortest possible time. For the avoidance of doubt remedial works shall also include any work related to ensuring compliance with Applicable Law.
- 17.4. During the development or remedial works of our systems, the performance of all our obligations that are performed by means of those systems may be suspended. We shall not be liable for your losses resulting from your inability to use the Services as a result of our system improvement or remedial works.

## **18. DATA PROTECTION AND DATA STORING**

- 18.1. In order to provide Services, we collect, use, store and otherwise process information about you as permitted by the legal acts of Malta, the European Union General Data Protection Regulation (No 2016/679) and other legal acts. For details regarding the data protection and processing, please refer to the Privacy Policy available at <https://www.blockchain.com/en/legal/privacy>. You have to familiarize yourself with the Privacy Policy prior to accepting these Terms. In case you find the Privacy Policy or any parts thereof unclear or unintelligible, you should refer to our Data Protection Officer, as explained by the Privacy Policy, prior to accepting these Terms and he/she will help. By way of accepting these Terms, you acknowledge that you have familiarized with and understood the Privacy Policy.
- 18.2. We have the right to record and store any information relating to any and all Transactions concluded, and to record and store information about all Orders, Transactions performed by us according to your requests. Records mentioned above may be submitted by us to you and/or third parties, who have the right to receive such data under the basis set forth in the Applicable Law, as evidence confirming the executed Transactions.
- 18.3. We implement appropriate technical and organizational measures to protect personal data against accidental or unlawful destruction or accidental loss, alteration, unauthorized disclosure or access, in particular where the processing involves the transmission of data over a network, and against all other unlawful forms of processing.
- 18.4. You are obliged to inform us in writing immediately in case any information we hold about you is inaccurate or not up to date or you believe that any of the information about you is collected, used and stored by us in a manner not compliant with Applicable Law.

## 19. CONFIDENTIALITY

- 19.1. “**Confidential Information**” means information that is designated as ‘confidential’ or which by its nature is clearly confidential. Confidential Information includes (without limitation) any information concerning the technology, technical processes, knowledge, know-how, trade secrets, manuals, business processes, procedures, personal data, business affairs, financial affairs and finances of any party, its shareholders, customers, employees or service providers and suppliers, a party’s security procedures and the organisational structure or facilities of the party. Confidential Information may take the form of:
- a. documents, technical specifications, unpublished patent specifications, data, drawings, plans, processes, photographs, databases, computer software in disk, cassette, tape or electronic form and data storage or memory in, and items of, computer hardware; or
  - b. oral descriptions, demonstrations or observations.
  - c. Confidential Information includes (without limitation) information of the above description which is in transit to/from, supplied to, stored by, processed or marked for destruction by us or the customer.
- 19.2. You undertake to keep confidential the technical and commercial information which has become known to you during contractual relations with us.
- 19.3. During the term of these Terms and after their termination you shall use our Confidential Information solely for fulfilling your responsibilities and obligations and using Services under these Terms and for no other purposes. You shall retain such confidential Information in strict confidence and shall not disclose it to any third party without our written consent.
- 19.4. You also undertake to keep confidential the technical and commercial information which has become known to you during contractual relations with us, including the market data indicated above.
- 19.5. You shall immediately notify us of any unauthorized use or disclosure, or suspected unauthorized use or disclosure of confidential Information. In the event that any disclosure of the confidential Information is required by you pursuant to Applicable Law, you shall provide us a reasonable notice and opportunity to contest the need for such disclosure, or to seek a protective order therefor. If you fail to contest the need for such disclosure or to obtain a protective order, you may disclose only that portion of the confidential information that is legally so required to be disclosed, provided that any confidential Information so disclosed shall maintain its confidentiality protection for all purposes other than such legally required disclosure.
- 19.6. No confidentiality obligations shall apply to information that:
- 19.6.1. was already known to you without an obligation of confidentiality at the time of disclosure hereunder;
  - 19.6.2. is or becomes public knowledge through no action of you;
  - 19.6.3. is known to you from your own independent research without infringing a duty of confidentiality;
  - 19.6.4. you receive from any third party having a legal right to transmit such information without being under any obligation to keep such information confidential.

## 20. INTELLECTUAL PROPERTY

- 20.1. You acknowledge and agree that any and all titles, interests and Intellectual Property Rights that exists now, and all such titles, interests and rights subsequently acquired by us, including but not limited to the Blockchain.com System in its entirety, including without limitation to all information, content and material contained therein, are owned or licenced by us and are protected by intellectual property laws and / or international treaty provisions.



- 20.2. Nothing in these Terms grants you any legal rights to the Blockchain.com System in its entirety other than as necessary to enable you to use the Services.
- 20.3. You acknowledge that, under no circumstances, you will acquire any title or interest to any part of the Blockchain.com System or their contents. You may not reproduce, store, share, distribute or use any of the information, content and material contained on the Blockchain.com System, either in whole or in part, without our or the respective owner's prior written consent.
- 20.4. Blockchain.com and Blockchain names and logos are our or our affiliates' trademarks. Other marks, graphics, icons, names and logos used or displayed on or through the Blockchain.com System and the described or offered products or services are trademarks, trade dress and / or service marks of us, or affiliates or otherwise are the property of their respective owners, who may or may not be affiliated with, connected to, or sponsored by us.
- 20.5. You must not copy or use any of the abovementioned trademarks, trade dress and / or service marks, in whole or in part, without our and the respective owner's prior written consent.

## **21. THIRD PARTY CONTENT/ SERVICES**

- 21.1. While using the Blockchain.com System and/or Services, you may also view content or services provided by third parties, including links to web pages, services of such third parties as well as redirection to such third parties (the **Third party content**). We neither endorse nor control any Third party content and have no responsibility and no liability for any Third party content. In addition, your dealings with such third parties are solely between you and the respective third party. We are neither liable nor responsible for any loss or damage of any sort incurred by you as a result of any such dealings with any such third parties. Your use of Third party content is at your own risk.
- 21.2. Our Services may also connect to third party services, platforms or functionalities, such as staking or other blockchain-related activities. These services are provided independently by third parties, and we are not responsible for their operation, terms, or outcomes.
- 21.3. Information about third party services, including their terms, privacy policies, and functionality, will be made available on our Website or within your Account dashboard. You are encouraged to review such information thoroughly before engaging with these third party services.
- 21.4. We do not endorse, monitor, or control the content, functionality, or security of third party services accessible through our platform. Any engagement with third party services is at your discretion, and we disclaim any liability arising from your use of such third-party services.
- 21.5. All risks, obligations, or liabilities related to the use of third party services, including potential losses, changes in service terms, or operational failures, may arise from actions or inactions of the third-party service provider or other external factors beyond our control. While we strive to connect you with reliable third-party services, we cannot guarantee their performance or outcomes. You agree to carefully assess any associated risks and responsibilities before engaging with such services.
- 21.6. By accessing third party services through our Blockchain.com System, you acknowledge that these services are independent of our operations and that any interactions, agreements, or disputes are between you and the respective service provider.

## **22. ASSIGNMENT**

- 22.1. These Terms shall be binding on your successors, heirs, personal representatives, and assignees. You may not assign or transfer any of your rights or obligations under these Terms without our prior written consent, which may be withheld at our sole discretion.
- 22.2. We reserve the right to assign the rights and obligations under these Terms to any third parties at any time without your consent, provided that such an assignment will be in compliance with the Applicable Law and regulations. We will inform you of such assignment in accordance with Applicable Law.

## **23. CONFLICTS OF INTEREST**

- 23.1. In the normal exercise of our activities, we may encounter situations presenting potential conflicts of interest. A conflict of interest is a situation in which, in the exercise of our activities, the interests of our clients and the interests of us (including our managers, employees and any person directly or indirectly linked thereof by control) are either directly or indirectly different and where the conflicted party will be affected by a decision taken.
- 23.2. We manage conflicts of interest in accordance with the Applicable Laws and our internal policies. A summary of our policy of management of conflicts of interest is publicly available on our Website .

## **24. LANGUAGE**

- 24.1. The formal language of these Terms, information and documents to be provided by you under these Terms, as well as communication between us shall be in English Using in communication with you of any other language is exclusively for information purposes and in no way shall alter, change or modify these Terms.

## **25. GOVERNING LAW**

- 25.1. The construction, validity and performance of these Terms, as well as any rights, obligations, claims or disputes arising out of them shall be governed in all respects by the laws of Malta without recourse to the conflict of laws rules regardless of the venue or jurisdiction in which a dispute arises.

## **26. NO WAIVER**

- 26.1. Failure or delay by us to exercise any right, power or remedy under these Terms or to require or enforce strict performance by you of any provision of these Terms and any supplemental or incorporated documents or policies shall not be regarded as a waiver or relinquishment of any such right, power or remedy.

## **27. SUBCONTRACTING**

- 27.1. You acknowledge and agree that we shall have the right to sub-contract and outsource any of the obligations under these Terms without your prior consent and may engage, in our sole discretion, third-party providers to assist to provide Services to you, and that we shall have the right to transfer to our third party providers all data that you have provided, or cause to be available to us in connection with these Terms, provided, however, that such third-party providers are bound by confidentiality obligations and abide themselves to data protection requirements set by us and data protection laws.

## **28. PLACE OF PERFORMANCE OF OBLIGATIONS**

- 28.1. Unless stipulated otherwise, our registered office is the place of performance of our obligations towards you and of your obligations towards us.

## **29. SEVERABILITY**

- 29.1. If any part of these Terms is found by a court of competent jurisdiction to be invalid, unlawful or unenforceable then such part shall be severed from the remainder of these Terms which shall continue to be valid and enforceable to the fullest extent permitted by Applicable Law.

## **30. PROOF**

- 30.1. Our records, books, documents and files, in any form whatsoever, will have evidential value, unless proven otherwise.

## **31. ENTIRE AGREEMENT**

- 31.1. These Terms and any annexes or schedules thereto and any documents referred to in them, constitute an entire agreement between us and supersede any previous arrangement, understanding or agreement between us relating to the subject matter they cover.

- 31.2. We may agree on additional conditions which are not provided in these Terms, by a separate written agreement. Such agreement shall become an integral part of these Terms.

## **32. SURVIVAL**

- 32.1. Any right or obligation of us in these Terms and individual agreements thereof, which, by its express terms or nature and context is intended to survive termination of these Terms (such as clauses concerning liability, confidentiality and other) shall survive any such termination.

## **33. SCHEDULES**

- 33.1. These Terms have the following Schedules:

33.1.1. Schedule 1 *"Glossary of Terms"*

33.1.2. Schedule 2 *"Custody and Administration of Crypto-Assets"*

33.1.3. Schedule 3 *"Fiat Related Services"*

33.1.4. Schedule 4 *"Transfer Services"*

33.1.5. Schedule 5 *"Reception and Execution of Orders. Order Types (Crypto-Asset Exchange Transactions)"*

## SCHEDULE 1 –GLOSSARY OF TERMS

1. The capitalized terms used in these Terms shall have the following meanings as defined herein or as defined elsewhere in these Terms or any Schedules, annexes, or related agreements referenced within these Terms. In the event a capitalized term is not defined in this section but is defined elsewhere, such definition shall apply where the term is used.
  - 1.1. **Account** means your virtual interface within the Blockchain.com System that is intended for your use of our Services. Account is accessible via the Website or mobile application;
  - 1.2. **AML/CTF** means anti-money laundering and terrorist financing as described in the Law on the Prevention of Money Laundering and Terrorist Financing of Malta;
  - 1.3. **Applicable Law** means all applicable provisions of all laws, treaties, regulations, orders of governmental authorities and all orders and decrees of all courts and arbitrators that are applicable to either of us;
  - 1.4. **Blockchain.com System** means a software with relevant user interfaces available on the Website, mobile application and/or otherwise accessible, owned, administered, supported and developed by us facilitating the use of our Services;
  - 1.5. **Business Day** means a calendar day, except Saturdays, Sundays and official holidays and days off set by the legal acts of Malta, when banks are normally open for business in Malta;
  - 1.6. **Buy Order** means an Order placed by you in accordance with the process set out in Schedule 5 of these Terms for the conclusion of a Crypto-Asset Exchange Transaction concerning the purchase by you of Crypto-Assets in exchange for Fiat;
  - 1.7. **Crypto-Asset** (also known as cryptocurrency, virtual currency, digital currency) means a digital representation of a value or of a right that is able to be transferred and stored electronically using distributed ledger technology or similar technology and that falls under the regulation of MiCAR;
  - 1.8. **Crypto-Asset Exchange Transaction** refers to a remote transaction concluded by you, governed by these Terms, involving the purchase or sale of any Crypto-Asset. This also includes transactions executed through Limit Orders;
  - 1.9. **Custody Service** or **Custody** has the meaning defined in Clause 1.1 of Schedule 2 “*Custody and Administration of Crypto-Assets*”;
  - 1.10. **Exchange Rate** refers to the value relationship between assets in trading pairs, determined by factors such as demand, supply, intrinsic value, utility, and other economic variables, as quoted and/ or applied to you;
  - 1.11. **Fees** mean the fees that we will charge you for the provision of the Services, the details of which are set out in the Fees Schedule. The exact Fees and their sizes applied to you are always available on your Account’s dashboard;
  - 1.12. **Fees Schedule** means a document listing all different types of Fees that may apply in relation to provision of the Services by us. The document is available on the Website and forms an inseparable part of these Terms;
  - 1.13. **Fiat** means banknotes and coins, scriptural money or electronic money, or otherwise generally referred to as fiat funds, which in accordance with valid laws is legal tender;
  - 1.14. **Intellectual Property Rights** mean any and all rights existing now or in the future under patent law, copyright law, data and database protection law, trade secret law, trademark law, competition law, whether or not registered or capable of registration, and whether subsisting in any specific country(-ies) or any other part of the world, and any and all other proprietary rights of any kind, including without limitation rights to domain names, as may be updated and expanded periodically;

- 1.15. **KYC** means our process of identifying and verifying the identity of you as our potential client (including your representatives) in accordance with the Applicable Law and assessing your suitability / eligibility to become our client;
- 1.16. **Limit Order** means an Order placed by you in accordance with Schedule 5 of these Terms for the conclusion of a Crypto-Asset Exchange Transaction concerning a purchase or sale of sale of Crypto-Assets or a conversion of one type of Crypto-Asset(s) for another type of Crypto-Asset(s) at a limit price specified by you;
- 1.17. **MiCAR** has the meaning defined in the introductory part of these Terms;
- 1.18. **Order** means an order to purchase or sell one or more Crypto-Assets, including Buy Orders, Sell Orders, Swap Orders, Limit Orders, and any Transfer Order or order to withdraw Fiat from the Wallet. Each type of Order is subject to the provisions set out in the respective Schedule to these Terms;
- 1.19. **Order Execution Policy** means our policy setting out the procedures, and measures established, implemented, and maintained by us to ensure that your Orders are executed in a manner that consistently achieves the best possible result for you (our customer). Order Execution Policy is always publicly available on our Website [here](#).
- 1.20. **Privacy Policy** means the document that sets out the main provisions of how, when and under what conditions we process your personal data available on our Website [here](#);
- 1.21. **Register of Positions** has the meaning defined in Clause 4.1 of Schedule 2 "*Custody and Administration of Crypto-Assets*";
- 1.22. **Relevant Assets Network** means a distributed ledger technology (DLT) network or blockchain protocol that facilitates the validation, recording, and settlement of transactions involving Crypto-Assets. Relevant Assets Networks are decentralized, peer-to-peer systems supported by independent participants, which are neither owned, controlled, nor operated by us. These networks vary in their operational protocols, transaction confirmation times, and levels of security, and may include public or private blockchains. For the purposes of these Terms, the Relevant Assets Network for a particular Crypto-Asset is the specific blockchain or DLT infrastructure recognized as supporting its transactions. The Relevant Assets Networks are provided on our Website [here](#).
- 1.23. **Security Credentials** means personalized features that we require you to use to verify your identity, access to your Account, use the Wallet and / or other Services, authorise the Orders.
- 1.24. **Segregated Fiat Accounts** has the meaning defined in Clause 3.4 of Schedule 3 "*Fiat Related Services*";
- 1.25. **Segregated Wallets** has the meaning defined in Clause 1.1 of Schedule 2 "*Custody and Administration of Crypto-Assets*";
- 1.26. **Sell Order** means an Order placed by you in accordance with the process set out in Schedule 5 of these Terms for the conclusion of a Crypto-Asset Exchange Transaction concerning the sale of Crypto-Assets by you in exchange for Fiat;
- 1.27. **Services** mean the following services provided by us to you (in addition to a Wallet that facilitates these services):
- 1.27.1. the custody and administration of crypto-assets on behalf of clients;
  - 1.27.2. the exchange of crypto-assets for fund;
  - 1.27.3. the exchange of crypto-assets for other crypto-assets;
  - 1.27.4. the execution of orders for crypto-assets on behalf of clients; and

- 1.27.5. transfer services for crypto-assets on behalf of clients.
- 1.27.6. and ancillary services related to the services above.
- 1.28. **Statement of Positions** has the meaning defined in Clause 5.1 of Schedule 2 “*Custody and Administration of Crypto-Assets*”;
- 1.29. **Swap Order** means an Order placed by you in accordance with the process set out in Schedule 5 of these Terms for the conclusion of a Crypto-Asset Exchange Transaction concerning a conversion of one type of Crypto-Asset(s) for another type of Crypto-Asset(s);
- 1.30. **Terms** mean these Terms and Conditions of Use and all its Schedules, annexes, amendments and supplements hereof under which you and we agree on the terms and conditions of the provision of Services;
- 1.31. **Transaction** means, collectively, any Crypto-Asset Exchange Transaction, transaction related to Fiat or any Transfer.
- 1.32. **Transfer** means any transaction for the transfer of Crypto-Assets from your Wallet to another Crypto-Assets wallet or receipt of Crypto-Asset from another Crypto-Assets wallet to your Wallet;
- 1.33. **Transfer Order** has the meaning defined in Clause 1.1 of Schedule 3 “*Transfer Services*”;
- 1.34. **Transfer Services** has the meaning defined in Clause 1.1 of Schedule 3 “*Transfer Services*”;
- 1.35. **Wallet** refers to a Crypto-Asset address generated by us, along with its associated public key, for managing Crypto-Assets entrusted to us by you, while remaining your property. The Wallet also functions as a means to record information about your entrusted Fiat funds, enabling the initiation and execution of Crypto-Asset Exchange Transactions.
- 1.36. **We** (also referred to as “**us**” or “**our**”) mean Blockchain (LT), UAB with the details as stated above in the preamble of these Terms. We might be contacted through:
- (i) E-mail: support@blockchain.com;
  - (ii) Website: [www.blockchain.com](https://www.blockchain.com).
- 1.37. **Website** means our website <https://www.blockchain.com/> including all its sub-domains;
- 1.38. **Withdrawal** refers to a transaction involving the transfer of Crypto-Assets from your Wallet to external wallets or the transfer of Fiat funds entrusted to us to your external payment account.

## SCHEDULE 2 – CUSTODY AND ADMINISTRATION OF CRYPTO-ASSETS

### 1. SCOPE

- 1.1. We provide you with custody and administration services for Crypto-Assets in connection with your use of the Account (the **Custody Service** or **Custody**). The Custody Service allows you to securely store your Crypto-Assets with us. When you deposit or otherwise receive Crypto-Assets to your Wallet, we will store your Crypto-Assets in one or more segregated omnibus wallets that we have opened specifically for the purpose of holding Crypto-Assets on behalf of our clients (the **Segregated Wallets**). These Segregated Wallets are separate from any of our (or other companies that belong to our group of companies) corporate wallets where we hold our own Crypto-Assets. This ensures that your Crypto-Assets are kept distinct from any assets owned by us or any of our group companies.
- 1.2. We always track the specific amount of Crypto-Assets you hold with us at any specific moment. You can view your Wallet's balance and manage your Crypto-Assets at any time via the Wallet facilitated by the Blockchain.com System, accessible either through our mobile app or Website interface.

### 2. SECURITY MEASURES

- 2.1. In order to ensure the security of your Crypto-Assets, we apply the following security measures:
  - 2.1.1. we do not use the services of any sub-custodians or third parties to provide you with the Custody Service. All Crypto-Assets are subject to Custody within our own infrastructure and under our direct control;
  - 2.1.2. Segregated Wallets, which we use to store your Crypto-Assets, consist of both cold and hot storage. Cold wallets are offline and provide enhanced security, ensuring your Crypto-Assets are stored in a way that minimizes exposure to hacking or unauthorized access. Hot wallets are used for daily transactions, offering quick access to custodied Crypto-Assets when required by our clients, while still maintaining a high level of security. Majority of Crypto-Assets under our Custody are stored in segregated cold wallets;
  - 2.1.3. your Crypto-Assets under Custody are always kept separate from our own Crypto-Assets at any time. As such, we: (i) do not store our own Crypto-Assets within the Segregated Wallets; (ii) we distinguish between our own Crypto-Assets wallets and the Segregated Wallets;
  - 2.1.4. we maintain accurate and up-to-date records of all Crypto-Assets held and administered on your behalf, and continuously perform Crypto-Assets reconciliation process held under Custody;
  - 2.1.5. Blockchain.com System consists of secure information and communication technology software that seeks to ensure security;
  - 2.1.6. to protect against external threats and internal misuse, we employ advanced security technologies including access control, secure backups of keys and continuous monitoring of our digital infrastructure for signs of unauthorized access.
- 2.2. Withdrawals from your Wallet will be processed in accordance with the requirements outlined in Schedule 4 "Transfer Services".

### 3. REGISTER OF POSITIONS

- 3.1. We maintain a register of positions concerning your Crypto-Assets under Custody which corresponds to your rights to the Crypto-Assets (the **Register of Positions**).
- 3.2. Any changes in your positions of Crypto-Assets (i.e. every Crypto-Asset Transaction resulting in a movement of your Crypto-Assets) are duly recorded in the Register of Positions as soon as practicable after the relevant change occurs.

#### **4. TITLE AND RIGHTS TO CRYPTO-ASSETS**

- 4.1. By using our Custody Service, you retain full legal ownership of your Crypto-Assets. We act as a custodian for your Crypto-Assets, and the Crypto-Assets are held by us on your behalf. You may request Withdrawals (Transfers) of your Crypto-Assets at any time, subject to applicable terms, fees, and conditions. The ownership and control of your Crypto-Assets remain with you, and we are only responsible for holding and securing those Crypto-Assets on your behalf.
- 4.2. We facilitate the exercise of the rights attached to your Crypto-Assets where applicable. Any event that creates or modifies your rights is immediately reflected in your Register of Positions.
- 4.3. Where there are changes to the underlying distributed ledger technology or any other event likely to create or modify your rights to Crypto-Assets, you will be entitled to any Crypto-Assets or any rights newly created on the basis and to the extent of your positions in Crypto-Assets held at the time of the occurrence of that change or event, except when these Terms expressly provide otherwise (as indicated in Clauses 8.1-8.3 below).

#### **5. STATEMENT OF POSITIONS**

- 5.1. We will provide you with periodic statements of the Crypto-Assets under our Custody held on your behalf (the **Statement of Positions**) at least once every calendar quarter, not later than the last day of March, June, September and December of each calendar year as well as whenever you request it additionally, reflecting all Crypto-Assets positions held by you in your Wallet.
- 5.2. The Statement of Positions will include the following information:
  - 5.2.1. all types of Crypto-Assets held in your Wallet;
  - 5.2.2. your positions (balance) per each type of Crypto-Assets;
  - 5.2.3. the Fiat value of your positions of Crypto-Assets at the relevant time; and
  - 5.2.4. any Crypto-Asset Transactions made during the reporting period.
- 5.3. The Statement of Positions will be made available to you via the dashboard on your Account in the Blockchain.com System accessible either via our mobile app or Website.
- 5.4. In addition to the quarterly or one-off (requested) Statements of Positions, we offer continuous, real-time tracking of your Crypto-Assets' positions directly on the "*Account Overview*" tab of your Account. Here, you can see detailed and up-to-date information (same extent as indicated in Clause 5.2 above).

#### **6. RETURN OF CRYPTO-ASSETS**

- 6.1. We have procedures and measures in place to ensure that Crypto-Assets or their means of access can be returned to you (if possible) as soon as possible upon your request. This includes resolving requests for Withdrawal (Transfer) promptly, subject to compliance with the procedure for Transfers established in these Terms as well as applicable security and regulatory requirements.

#### **7. LIABILITY FOR THE LOSS OF CRYPTO-ASSETS UNDER CUSTODY**

- 7.1. We will be liable to you for the loss of any Crypto-Assets or of the means of access to the Crypto-Assets that occurs as a result of an incident that is attributable to us. In any case, our liability for such loss shall be capped at the market value of the Crypto-Asset that was lost, at the time the loss occurred.
- 7.2. If an incident is not attributable to us, we shall not be liable to you for the loss of your Crypto-Assets or of the means to access to your Crypto-Assets that may occur due to such incident. Incidents not attributable to us include any event in respect of which we demonstrate that it occurred independently of the provision of our Services, or independently of our operations, such as a problem inherent in the operation of the distributed ledger that we do not control.



## **8. FORKS**

- 8.1. The underlying protocols that form the Crypto-Assets that are supported by your Wallet may be subject to sudden changes in operating rules, known as a “Fork”. Forks may materially affect the value, function, and/or the name of Crypto-Assets supported by your Wallet. It is your sole responsibility to inform yourself about any Forks that impact the Crypto-Assets that you use your Wallet to access and to determine how to respond to the upcoming Forks.
- 8.2. In the event of a Fork or other network disruption, there is a risk that:
  - 8.2.1. we may need to temporarily suspend operations in relation to that Fork without providing advance notice to you;
  - 8.2.2. we may decline to support either or both branches of a Fork and may do so without prior notice.
- 8.3. You acknowledge the risks presented by Forks and you accept that we have no responsibility to assist you to move or sell an unsupported branch of a forked protocol and you understand that the unsupported forked Crypto-Assets may not be made available to you. We are not responsible for any loss incurred by you, caused in whole or in part, directly or indirectly, by a Fork or other network disruption.

## **9. CUSTODY POLICY**

- 9.1. We maintain and implement a Custody and Administration Policy that sets out the principles and procedures governing the custody and administration of Crypto-Assets entrusted to us. This Custody and Administration Policy outlines the measures we take to ensure the security, segregation, and integrity of your Crypto-Assets in line with regulatory requirements.
- 9.2. A summary of our Custody and Administration Policy is provided to you before entering into these Terms and thereafter are available on request in an electronic format by emailing [support@blockchain.com](mailto:support@blockchain.com). In the summary of our Custody and Administration Policy, you will find the key information on how your Crypto-Assets are held and protected while under our Custody, as well as how we minimise the risk of a loss of your Crypto-Assets or the rights related to those Crypto-Assets or the means of access to the Crypto-Assets due to fraud, cyber threats or negligence.

## **SCHEDULE 3 – FIAT RELATED SERVICES**

### **1. SCOPE**

- 1.1. Please note that we are not a payment service provider, and we do not provide payment services related to Fiat funds entrusted to us. Our services related to Fiat are specifically limited to facilitating Crypto-Asset Exchange Transactions, which include the following:, i.e. we allow you to:
  - 1.1.1. entrust Fiat funds to us, which are dedicated exclusively for future Crypto-Asset Exchange Transactions;
  - 1.1.2. receive settlement in Fiat for Crypto-Assets you have sold according to an executed Order submitted to us, which will be displayed in your Wallet;
  - 1.1.3. withdraw Fiat entrusted to us to your account held with a payment service provider.
- 1.2. We always track the specific amount of Fiat you entrusted to us at any specific moment. You can view your Fiat balance and manage your Fiat in a manner limited as provided in this Schedule at any time via the Wallet.

### **2. FIAT PREPAYMENT**

- 2.1. You may send Fiat funds to us in advance for future Crypto-Asset Exchange Transactions. To send the funds, you should follow the instructions available in your Account when selecting this option.
- 2.2. Fiat prepayments can be made in any of the currencies supported by us. If you attempt to send Fiat in a currency not supported by us, we may not be able to receive your payment.
- 2.3. Once we receive your payment, your Fiat balance will be reflected in your Wallet. Any Fiat sent to your Wallet may only be used for Fiat-to-Crypto-Asset exchange transactions.
- 2.4. Your Fiat funds will be held by us in accordance with our internal policies and procedures. This includes the requirement that your Fiat funds be segregated from our own funds by the end of the business day following the day on which the Fiat was received. These funds will be deposited into accounts with credit institutions or central banks, and such accounts will be separately identifiable from accounts used to hold our own funds (the **Segregated Fiat Accounts**). We will exercise due diligence when selecting the institutions to hold your Fiat funds, considering factors such as their market reputation, financial stability, and expertise. Furthermore, we will periodically review the institutions we have selected to ensure they continue to meet the required standards.
- 2.5. Fiat funds held in your Wallet shall not be considered a deposit. We do not pay interest on Fiat held in the Wallet, nor do we provide any other benefits that would be associated with deposits.

### **3. FIAT WITHDRAWAL**

- 3.1. Fiat withdrawals from the Wallet will be processed to your designated external account with a payment service provider. The timing of such withdrawals may vary depending on the processing times of third parties involved.
- 3.2. You may only withdraw your Fiat funds to the account from which the Fiat was initially sent as prepayment to us or to your other account that you indicate to us for this purpose, provided we can confirm to our satisfaction that the account belongs to you.
- 3.3. You can withdraw Fiat stored in your Wallet at any time, subject to account transaction limits and provided that there are sufficient Fiat or Crypto-Assets to cover the applicable Fees.

### **4. FIAT BALANCE**

- 4.1. We maintain an internal system that records information on your Fiat entrusted to us. Any changes in

your Fiat balance held with us is duly recorded in our internal system as soon as practicable after the relevant change occurs.

4.2. You can find information regarding your Fiat balance entrusted to us in your Wallet.

## **5. LIABILITY FOR THE LOSS OF FIAT UNDER SAFEGUARDING ARRANGEMENTS**

5.1. We will be liable to you for the loss of any Fiat safeguarded by us as that occurs as a result of an incident that is attributable to us.

5.2. If an incident is not attributable to us, we shall not be liable to you for the loss of your Fiat that may occur due to such incident. Incidents not attributable to us include any event in respect of which we demonstrate that it occurred independently of the provision of our Services, or independently of our operations.

## SCHEDULE 4 –TRANSFER SERVICES

### 1. SCOPE AND DESCRIPTION

- 1.1. We will provide a secure platform for you to send supported Crypto-Assets from your Wallet to other Crypto-Asset wallets/ addresses accessible via the relevant DLT network, including wallets created on the Blockchain.com system and external wallets/ addresses. Similarly, you can receive supported Crypto-Assets in your Wallet from other wallets/ addresses accessible via relevant DLT networks. Our Services include enabling you to provide instructions to initiate a Transfer (**Transfer Orders**), as well as processing and executing these Transfer Orders (the **Transfer Services**).
- 1.2. We support Transfers only for the Crypto-Assets supported by our Blockchain.com System. The latest list of supported Crypto-Assets is available on your Account dashboard. This list is updated regularly based on technical, regulatory, and market considerations.
- 1.3. Transfers entail the movement of Crypto-Assets from your Wallet to another Crypto-Asset wallet/address or receiving Crypto-Assets in your Wallet from another Crypto-Asset wallet/address. Transfers are processed through the relevant blockchain network and are subject to network fees and confirmation times.
- 1.4. Our Transfer Services do not support Fiat transfers. We will not accept, nor process any requests or orders for Fiat payments. We will also not accept or process any Transfer Order for Transfer of Crypto-Assets which are not supported by our Blockchain.com System. Similarly, the Wallet cannot receive unsupported Crypto-Assets. Any attempt to receive unsupported Crypto-Assets in your Wallet may result in the loss of such Crypto-Assets, and we shall bear no liability for this.

### 2. SUBMISSION AND EXECUTION OF TRANSFER ORDERS. RECEIPT OF TRANSFERS.

#### *Transfers from your Wallet*

- 2.1. To submit a Transfer Order, you must log into your Account and navigate to the relevant Transfers section. When submitting a Transfer Order, you will need to provide the following details:
  - 2.1.1. the wallet address of the recipient or Blockchain.com domain. In some cases, a tag, memo, or similar identifier may also be required for the successful Transfer of certain Crypto-Assets (e.g., XRP or XLM). If such identifiers are necessary, the Transfer Order form will prompt you to provide them;
  - 2.1.2. the specific Crypto-Asset you would like to send;
  - 2.1.3. the amount of Crypto-Assets you would like to send.
- 2.2. When creating the Transfer Order, you will be presented with a detailed breakdown of the applicable Fees for the Transfer. By submitting the Order, you irrevocably accept these Fees. The Fees associated with Transfer Services are outlined in the Fees Schedule.
- 2.3. Once you have verified that the Transfer Order is accurate, you must confirm it in the form and manner prescribed by us or as mutually agreed. We recommend that you improve the security of your account by requiring transfers to be approved by entering certain Security Credentials.
- 2.4. We may impose restrictions on Transfer amounts (minimum or maximum), frequencies, or destinations to comply with legal requirements, enhance security, or address technical constraints. If such limits are applied, you will be notified through your Account dashboard. These limits will also be displayed when you create a Transfer Order.
- 2.5. For a Transfer Order initiated through the Wallet interface to be completed, it must be confirmed and recorded in the Crypto-Assets ledger associated with the Relevant Asset Network. We have no control over third parties supporting these Relevant Asset Networks and accept no liability for their actions or omissions.

2.6. We have no control over:

2.6.1. the data that you provide when creating a Transfer Order; or

2.6.2. how transactions are processed in any Relevant Asset Network.

As a result, we cannot guarantee that the details of any Transfer Order you submit will be confirmed on the Relevant Asset Network. Transfer Orders submitted via our Services may fail to be completed or may experience significant delays due to the processing by the Relevant Asset Network. Additionally, we do not guarantee that the Wallet can transfer title or rights to any Crypto-Assets and make no warranties regarding title.

2.7. Upon receiving a valid Transfer Order, we will deduct the amount of Fees applicable to the Transfer from your Wallet in the form of specific Crypto-Asset(s) that the Transfer concerns and transmit the Transfer Order to the Relevant Assets Network. For each supported Crypto-Asset, we provide a reasonable estimation of the time or number of block confirmations needed for the Transfer to be considered irreversible or sufficiently irreversible for probabilistic settlement. This information is dependent on the Relevant Assets Network protocol and conditions. The estimates for each supported Crypto-Asset can be found on our Website [here](#) and will also be provided to you upon initiation of the Transfer Order. Please note that these estimates are indicative and may vary based on network congestion, fees paid, or other technical factors.

2.8. Transfers are processed 24/7/365, subject to network availability or service disruptions.

2.9. You should always keep in mind that Transfers, which are essentially blockchain transactions, are mostly irreversible. Once the Transfer Order has been transmitted to a Relevant Asset Network and becomes irreversible, we will not be able to assist you in reversing, cancelling or otherwise modifying your Transfer Order. We have no control over any Relevant Asset Network and do not have the ability to facilitate any reversion, cancellation or modification requests. You may request us to reverse, modify or cancel a Transfer Order and we will be able to assist only if the Transfer Order has not become irreversible.

2.10. The moment at which a Transfer becomes irreversible varies across different Relevant Assets Networks. However, we provide estimated times or block confirmation numbers for when a Transfer is considered irreversible or sufficiently irreversible on each Relevant Asset Network related to the Crypto-Assets we support. The maximum execution time for the Transfer service also varies across different Relevant Assets Networks. This information is available on our Website [here](#). Please note that these estimates are indicative, and we may not be able to assist with reversing a Transfer, even if the Transfer has not yet reached the estimated irreversible stage, as this ultimately depends on the Relevant Asset Network.

2.11. Once the Transfer Order is executed by the Relevant Asset Network, the Crypto-Assets will be available in the recipient's wallet/address, and the status of the Transfer Order in your Account will be updated to reflect this.

2.12. Your Transfer may not be processed (i.e. it will be blocked/frozen, returned, rejected, or suspended) if:

2.12.1. the recipient's wallet address, other identifier or other mandatory regulatory information (e.g. tags, memos or similar identifiers), if required, entered by you in the Transfer Order is not valid;

2.12.2. we are obliged to do so under our AML/CTF policies and procedures or the Applicable Law. This will occur if the recipient's wallet address is blacklisted as associated with money laundering and/or terrorist financing, belongs to or is associated with a person or an entity subject to international sanctions or due to other AML/CTF requirements;

2.12.3. the Crypto-Assets balance in your Wallet is insufficient to cover the Transfer amount and Fees.

In any case, we will notify you in your Account dashboard about the rejection of a Transfer Order and provide the following information:

a) indicate the reasons of such return, rejection or suspension, unless we are obliged under the

Applicable Law to withhold this information in whole or in part (e.g. in order to comply with AML/CTF requirements);

- b) instructions on how to remedy the rejection, return or suspension (if possible);
- c) the amount of any Fees incurred by you and whether reimbursement is possible.

- 2.13. Once we transmit the Transfer Order to the Relevant Assets Network, your Transfer Order may not be processed/executed due to various reasons, such as (non-exhaustive list):
- 2.13.1. if the Relevant Assets Network fails to process the Transfer Order or there are other technical/network issues causing this;
  - 2.13.2. the Transfer Order cannot be processed or executed due to other reasons beyond our control.
- 2.14. Fees are generally non-refundable. In the case of failed or rejected Transfers, we will assess the circumstances to determine if a Fee refund is applicable. Relevant Assets Network fees for Transfers are generally non-refundable once the Transfer Order is transmitted to the Relevant Assets Network.
- 2.15. We will not be liable for the Transfer of your Crypto-Assets to other wallets. You are solely responsible for ensuring the accuracy of the information required to process the Transfer (i.e., addresses, tags, and any other necessary credentials). We strongly advise you to always double-check the accuracy of the information you provide for Transfer Order purposes.

#### *Transfers to your Wallet*

- 2.16. To receive a supported Crypto-Asset into your Wallet, you must provide the sender with your deposit address, or any other relevant details required for the specific Crypto-Asset. To obtain this information, select the "Deposit" option in your Wallet, choose the desired Crypto-Asset, and we will provide you with a unique deposit address.
- 2.17. It is your responsibility to ensure the accuracy of the details provided to the sender. Incorrect or incomplete information may result in the loss of Crypto-Assets, which may be irreversible and for which we bear no liability.
- 2.18. The actual Transfers concerning the receipt of Crypto-Assets into your Wallet are processed via the Relevant Assets Network. Availability of the Crypto-Assets in your Wallet depends on confirmation by the Relevant Assets Network. Confirmation times vary based on network conditions and protocols.
- 2.19. In case of a Transfer to your Wallet, it is the sender and his Crypto-Asset services provider who are responsible for initiating such Transfer, processing it, transmitting it to the Relevant Assets Network. These steps are dependent on the agreement between the sender and his/her Crypto-Asset services provider and procedure established by such Crypto-Asset services provider, for which we are not responsible. We bear no responsibility for any delays, errors, or issues arising from the sender's service provider, including but not limited to incomplete or failed transmissions, or any related fees.
- 2.20. The Wallet only supports the receipt of Crypto-Assets listed as supported on our platform. If unsupported Crypto-Assets are sent to your Wallet, they may be permanently lost. You are responsible for ensuring that the sender is aware of the Crypto-Assets supported by our Blockchain.com System.
- 2.21. In some cases, a tag, memo, or similar identifier may be required for the successful receipt of certain Crypto-Assets (e.g., XRP or XLM). If such identifiers are required and are not provided by the sender, the Crypto-Assets may not be credited to your Wallet and could be irretrievable, for which we will bear no liability.
- 2.22. We do not charge any Fees for receiving Crypto-Assets into your Wallet. However, you may incur network fees imposed by the Relevant Assets Network, which are beyond our control.
- 2.23. Once received and confirmed by the Relevant Assets Network, the status of the Crypto-Assets received will be updated in your Wallet and Account dashboard.

### **3. INFORMATION ON INDIVIDUAL TRANSFERS**

- 3.1. After a Transfer is executed, the following information will be made available on your Account dashboard concerning such Transfer:
- 3.1.1. the names of the sender and the recipient;
  - 3.1.2. the sender's distributed ledger address or crypto-asset wallet number;
  - 3.1.3. the recipient's distributed ledger address or crypto-asset account number;
  - 3.1.4. reference code allocated to the Transfer;
  - 3.1.5. the amount and type of Crypto-Assets transferred or received;
  - 3.1.6. the debit value date or the credit value date of the Transfer of Crypto-Assets;
  - 3.1.7. the amount of any Fees relating to the Transfer.
- 3.2. The information indicated above for each Transfer will always be available on your Account dashboard and in each Statement of Positions (Section 5 of Schedule 1 "*Custody and Administration of Crypto-Assets*") free-of-charge.

**SCHEDULE 5 – RECEPTION AND EXECUTION OF ORDERS. ORDER TYPES**  
**(CRYPTO ASSET EXCHANGE TRANSACTIONS)**

**1. SCOPE AND DESCRIPTION**

- 1.1. In order to conclude one or more Crypto-Asset Exchange Transactions, you will need to place a respective Order with us via your Account dashboard. Aside from Buy Orders, Sell Orders and Swap Orders, we will grant you the ability to submit advanced Order type – Limit Orders.
- 1.2. Most Crypto-Asset Exchange Transactions for which you place Orders with us will be executed by us acting on your behalf with external liquidity venues, rather than being transmitted for execution to a third-party or a trading platform. This method of Order execution is known as 'execution outside a trading platform' and it may expose you to heightened market risks, including liquidity risk, volatility risk, and increased slippage risk. BY ACCEPTING THESE TERMS, YOU CONSENT TO THE EXECUTION OF YOUR ORDERS OUTSIDE A TRADING PLATFORM, AS DESCRIBED IN THIS CLAUSE.
- 1.3. The provisions of this Schedule 5 to the Terms describes the process of placement, execution and settlement of the Orders you place with us.

**2. PLACEMENT AND CONFIRMATION OF ORDERS**

- 2.1. In general, Orders can be placed for the following purposes:
  - 2.1.1. Orders for the purchase of one or more Crypto-Assets (Buy Orders and Limit Orders);
  - 2.1.2. Orders for the sale of one or more Crypto-Assets (Sell Orders and Limit Orders); and
  - 2.1.3. Orders for the exchange of one Crypto-Assets for other Crypto-Assets (Swap Orders and Limit Orders).
- 2.2. You can place an Order concerning a Crypto-Asset Exchange Transaction by logging into your Account (either using our mobile app or our Website), selecting the relevant option and entering the required details.
- 2.3. The details that need to be entered by you in order to place an Order are as follows (depending on the Order type, some data points will be not relevant and will not be requested to fill-in):
  - 2.3.1. the specific Crypto-Assets supported by the Blockchain.com System that you wish to buy, sell or convert;
  - 2.3.2. the quantity or equivalent Fiat value of each Crypto-Asset type you wish to buy, sell or convert;
  - 2.3.3. the Fiat currency supported by the Blockchain.com System that you wish to use to buy Crypto-Assets or to receive from a sale of Crypto-Assets;
  - 2.3.4. the type of Crypto-Assets that you wish to obtain in exchange for conversion of Crypto-Assets in your Wallet;
  - 2.3.5. the Order type (i.e. Buy Order, Sell Order, Swap Order, or Limit Order);
  - 2.3.6. the limit Exchange Rate and expiration date (for Limit Orders).
- 2.4. In case of Buy, Sell and Swap Orders, once you enter the above details, you will be displayed with a price quote with associated Fees for the Order calculated by the Blockchain.com System based on the information you indicated in the Order. The quote will consist of:
  - 2.4.1. Exchange Rate, i.e. the price for which we agree to execute your Order,. For the avoidance of doubt, this quote is valid only for the limited amount of time that will be indicated to you on the screen (typically it is refreshed every 100 seconds).



- 2.4.2. the Fees that will be applicable to your Order, including any blockchain transaction Fees (e.g. gas fee) and Fees for our Services calculated in accordance with the Fees Schedule. The applicable Fees will also be available for display separately, i.e. you will be provided with clear and transparent information on any Fees applicable to your Order.
- 2.5. For the avoidance of doubt, the part of the price quote consisting of Fees applicable to your Order (Section 2.4. of this Schedule) will not change. The Exchange Rate validity time will be visible for you on the Order placement section of your Account interface.
- 2.6. Once you carefully review the Order details you entered as well as the price quote, and, if it is deemed acceptable to you, you should confirm the Order and the price quote. For Buy, Sell and Swap Orders, when you confirm an Order, you simultaneously confirm the specific Exchange Rate for the Order as outlined in Clauses above. This will be the Exchange Rate that will be used to execute your Buy, Sell or Swap Order. The Order is considered as final once you confirm it as per above.
- 2.7. You may cancel an Order at any time before it is executed. A request to cancel an Order can be submitted via the dedicated section of your Account dashboard.
- 2.8. After an Order is considered as final, you may only request to cancel an Order before it is executed. If you wish to modify the Order, you will have to cancel it first and place a new Order with modified parameters. In practice, the execution of the Order could take place almost instantly after you submit and confirm an Order (i.e. it is considered final), therefore in most cases you may not be able to cancel an Order once it is final. Once the Order is executed, it cannot be cancelled or modified, except where a force majeure event or technical failure occurs. All cancellations and modifications of Orders are subject to applicable system limitations and market conditions.
- 2.9. If an Order is cancelled before execution, we will release to your Account any amounts of Crypto-Assets or Fiat received from you in connection with the Order.

### **3. SETTLEMENT AND ORDER EXECUTION**

- 3.1. Once the Order has been placed and confirmed by you, you will be required to settle the Exchange Rate applied to you with associated Fees. The execution process and available methods of settlement will depend on the type of Order.

#### *Buy Orders*

- 3.2. In case of Buy Orders, you will be able to pay the Order price using the Fiat in your Wallet entrusted to us (for more details, please refer to Schedule 3). We will deduct the amount of Fiat in your Wallet equivalent to the Order price (i.e. applied Exchange Rate and associated Fees). Typically, the payment will be settled instantly.
- 3.3. After your payment is physically settled as per Clause 3.2, we will execute your Order on your behalf and the purchased amount of Crypto-Assets will be transferred to your Wallet. We will immediately update your Wallet balance. Once updated, the execution of Order is complete, your Crypto-Assets will be under our Custody, and they will become immediately available to you.

#### *Sell Orders*

- 3.4. For Sell Orders, you must ensure your Wallet contains sufficient Crypto-Assets. Once you confirm the Sell Order, the specified amount of Crypto-Assets will be deducted from your Wallet, and the corresponding value in Fiat, calculated based on the applied Exchange Rate, will be settled to your Wallet. The Order is considered complete at this point. Typically, the Fiat amount will be credited immediately, though delays may occur.

#### *Swap Orders*

- 3.5. In case of Swap Orders, you must have sufficient Crypto-Assets in your Wallet. At the time of placing the Order, you will need to select the Crypto-Assets in your Wallet that you wish to exchange and the Crypto-Assets that you wish to obtain.

- 3.6. Once you confirm a Swap Order, we will calculate the amount of Crypto-Asset you will obtain based on the Exchange Rate accepted by you when you confirmed the Swap Order (Clause 2.6 of this Schedule). The sold amount of Crypto-Assets will be deducted from your Wallet and the bought amount of Crypto-Assets will be settled to your Wallet. The Order is considered complete at this point. Typically, the conversion of Crypto-Assets will be done immediately, though delays may occur.

#### 4. LIMIT ORDERS

- 4.1. You will also be able to place advanced Order type: Limit Orders. Limit Orders may be placed for any of the purposes indicated in Clause 2.1 of this Schedule (for the purchase of Crypto-Assets (the **Limit Buy Order**), sale of Crypto-Assets (the **Limit Sell Order**) or exchange of Crypto-Assets for other Crypto-Assets (the **Limit Swap Order**)). For the avoidance of doubt the provisions of this Schedule governing Buy Orders, Sell Orders and Swap Orders as well as provisions of Section 2 will apply to Limit Orders as well. In case of discrepancies between the provision of this Section and other Sections on this Schedule, this Section 4 will prevail.

- 4.2. To place a Limit Order:

- 4.2.1. you will need to navigate to the “Advanced Trading” section of your Account dashboard;
- 4.2.2. you will be presented with a “Trading View” for the selected Crypto-Asset which will show: (a) a dynamic Crypto-Asset price graph; and (b) Crypto-Asset market pricing indicators (e.g., highest price, lowest price) within timeframes configurable by you;
- 4.2.3. upon selecting the Limit Order type, you will be presented with an Order interface and will need to define the Limit Order parameters (Clause 2.3 of this Schedule), including:
- a) selecting a supported pair of Crypto-Assets (for Limit Swap Orders) or Crypto-Assets that you wish to buy (for Limit Buy Orders) or sell (for Limit Sell Orders);
  - b) the expiration time of the Limit Order (the expiration time will be a set time period for which the Limit Order will be active (after expiration thereof, the Limit Order will be deemed expired and shall be automatically cancelled);
  - c) the limit Exchange Rate (a specific price defined by you at which you wish to buy, sell a Crypto-Asset, or swap a Crypto-Asset for another Crypto-Asset).
- 4.2.4. you will need to hold Fiat or Crypto-Assets in your Wallet to form one side of the Limit Order Transaction;
- 4.2.5. you will be displayed with Fees applicable to the Limit Order, if executed, based on the parameters of your Limit Order (Clause 2.4.2 of this Schedule);
- 4.2.6. you will need to confirm your Limit Order (Clause 2.6 of this Schedule).

- 4.3. The Limit Order is considered as final once you confirm it as per above.

- 4.4. Once you place the Limit Order:

- 4.4.1. the respective amount of Crypto-Assets or Fiat subject to the Limit Order will be reserved until the Limit Order is either executed, cancelled by you or expires. This means that you will not be able to use such reserved Crypto-Assets or Fiat for any other purposes until execution, cancellation or expiration of the Limit Order (Clauses 2.7–2.9 of this Schedule);
- 4.4.2. if the market Exchange Rate of such Crypto-Asset becomes equal to or better than the limit Exchange Rate indicated by you in the Limit Order, your Limit Order will be executed based on the market Exchange Rate;
- 4.4.3. once the condition indicated in Clause 4.4.2 of this Schedule is met, the sold amount of Crypto-Assets or Fiat will be deducted from your Wallet and the bought amount of Crypto-Assets or Fiat will be settled to your Wallet. The Order is considered complete at this point. Typically, the conversion of Crypto-Assets will be done immediately, though delays may occur.

- 4.5. If a Limit Order has not been executed until the moment it expires (subject to Limit Order expiration parameter set by you in the Limit Order), the Limit Order will be automatically cancelled and the reservation of your Crypto-Asset or Fiat (Clause 4.4.1) will be removed.

## **5. BEST EXECUTION**

- 5.1. When executing your Order, we will take all necessary steps to obtain, while executing your Order, the best possible result for you taking into account factors of price, cost, speed, likelihood of execution and settlement, size, nature, conditions of custody of the Crypto-Assets or any other considerations relevant to the execution of the Order.
- 5.2. In order to ensure our compliance with the best execution obligation set out in Clause 5.2 above, we will execute your Order based on our Order Execution Policy that is available on our Website [here](#). The Order Execution Policy outlines the procedures we follow and requirements we comply with to ensure that your Orders are executed in a way that achieves the best possible result for you in terms of price, costs, speed, likelihood of execution and other relevant considerations. This obligation will not apply if we execute the Order following specific instructions given by you when you submit/confirm the Order.
- 5.3. When you adhere to these Terms you confirm that you have familiarized yourself with and consent to the Order Execution Policy. If there are any significant changes to our Order Execution Policy, we will notify you immediately via your Account dashboard and email address after such changes come into effect. For the avoidance of doubt, any changes to our Order Execution Policy will not be considered as changes to these Terms under Section 10 and will not grant you the right to terminate these Terms under the procedure set out in Section 10.